

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 663

BY TRANSPORTATION AND DEFENSE COMMITTEE

AN ACT

RELATING TO AGRICULTURE LICENSE PLATES; AMENDING SECTION 49-417B, IDAHO CODE, TO REVISE PROVISIONS REGARDING AGRICULTURE PLATES COLOR AND DESIGN; AMENDING SECTION 49-402C, IDAHO CODE, TO EXEMPT AGRICULTURE PLATES FROM STANDARDIZED COLOR AND DESIGN; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 49-417B, Idaho Code, be, and the same is hereby amended to read as follows:

49-417B. IDAHO AGRICULTURE PLATES. (1) ~~On and after January 1, 2000,~~ ~~any~~ Any person who is the owner of a vehicle registered under the provisions of section 49-402 or 49-434(1), Idaho Code, may apply for Idaho agriculture plates. The provisions of this section shall not apply to any vehicle with a registered maximum gross weight over twenty-six thousand (26,000) pounds. Availability of Idaho agriculture plates for other vehicles may be authorized by rule of the board.

(2) In addition to the regular operating fee, the applicant shall be charged a fee of thirty-five dollars (\$35.00) for the initial issuance of the plates, and twenty-five dollars (\$25.00) upon each succeeding annual registration. Ten dollars (\$10.00) of the initial fee and ten dollars (\$10.00) of the renewal fee shall be deposited in the state highway account and shall be used to fund the cost of the administration of this special license plate program. Twenty-five dollars (\$25.00) of each initial fee and fifteen dollars (\$15.00) of each renewal fee shall be transferred by warrant on a monthly basis by the Idaho transportation department to Idaho ag in the classroom created by the provisions of section 57-815, Idaho Code.

(3) Whenever title or interest in a vehicle registered ~~under the provisions of~~ pursuant to this section is transferred or assigned, the owner may transfer the special plates to another vehicle upon payment of the required transfer fees. The owner may only display the plates after receipt of new registration from the department.

(4) The Idaho agriculture license plate shall be of a color and design ~~in accordance with the provisions of section 49-402C, Idaho Code. That portion of the design which features Idaho agriculture shall be that is acceptable to the Food Producers of Idaho, Inc.~~ Idaho ag in the classroom board of directors and shall be approved by the department ~~utilizing and utilize~~ a numbering system as determined by the department. Initial costs of the plate program, including the cost of plate design, shall be paid from the Idaho ag in the classroom account.

(5) Sample Idaho agriculture plates may be purchased from the department for a fee of thirty dollars (\$30.00), ten dollars (\$10.00) of which shall be deposited in the state highway account and twenty dollars (\$20.00)

of which shall be transferred by warrant on a monthly basis by the Idaho transportation department to Idaho ag in the classroom.

SECTION 2. That Section 49-402C, Idaho Code, be, and the same is hereby amended to read as follows:

49-402C. SPECIAL LICENSE PLATE PROGRAMS -- STANDARDIZED PLATE COLOR AND DESIGN. (1) It is the intent of the legislature that special license plates issued by the department be readily recognizable as plates from the state of Idaho without losing the uniqueness for which the special plate was designed and purchased. In addition, the legislature finds that the department can operate in a more efficient, cost-effective manner by conforming special plates to a basic color and design.

(2) (a) No special license plates and no special license plate programs in existence on or before June 30, 1998, shall be affected by the provisions of subsections (2) through (5) of this section. On and after July 1, 1998, any new special license plate program authorized or any redesign of an existing special license plate shall use the same red, white and blue background as the standard issue of license plates described in section 49-443, Idaho Code, except that:

~~(a) (i)~~ The identification of county shall be omitted;

~~(b) (ii)~~ The word "Idaho" shall appear on every plate;

~~(c) (iii)~~ The inscription "Scenic Idaho" may be omitted without legislative consideration and approval; and

~~(d) (iv)~~ No slogan shall be used that infringes upon, dilutes or compromises, or could be perceived to infringe upon, dilute or compromise, the trademarks of the state of Idaho, including, but not limited to, "Idaho Potatoes®," "Grown in Idaho™," "Famous Idaho Potatoes™" or "Famous Potatoes®."

(b) The provisions of this subsection shall not apply to the plate designs issued pursuant to the provisions of section 49-417 or 49-417B, Idaho Code.

(3) Any redesign required for a special plate to conform with legislative intent and the provisions of this section may be done in a manner similar to that used to produce the original design.

(4) The special plates shall conform in all other respects with the provisions of section 49-443, Idaho Code, relating to visibility requirements, display of registration number, time period for validity of plates, and reservation of plate numbers.

(5) Unless otherwise specifically provided, no special license plates shall be issued to motor vehicles with a registered maximum gross weight in excess of twenty-six thousand (26,000) pounds, or any motor vehicle registered under section 49-434(5), Idaho Code, or section 49-435, Idaho Code.

(6) Notwithstanding any other provision of law to the contrary, on and after July 1, 2020, no new special license plate or special license plate program shall be established for the benefit of any entity that is not the state of Idaho or an agency of the state of Idaho. With respect to any special license plate program that is in existence on July 1, 2020, that has a nonprofit agency as a recipient of the proceeds from the sales of such plate, if fewer than one thousand (1,000) plates are issued in the first year of the special plate program's existence, fewer than one thousand five hundred

1 (1,500) plates are issued in the second year of the special plate program's
2 existence, or fewer than two thousand (2,000) plates in the third or any sub-
3 sequent year of such special plate program's existence, the department shall
4 discontinue that special license plate program.

5 (7) With respect to a special license plate that has been discontinued
6 prior to July 1, 2020, or is discontinued after that date for any reason, any
7 existing plates may be renewed upon their expiration until the physical li-
8 cense plates must be replaced pursuant to section 49-443(2), Idaho Code. No
9 duplicate or replacement plates will be produced if such plates are lost or
10 damaged.

11 SECTION 3. An emergency existing therefor, which emergency is hereby
12 declared to exist, this act shall be in full force and effect on and after
13 July 1, 2026.